

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KAYLA FLORES,

Petitioner

VS.

JEFFREY BRADFORD MARSHALL-NAIL,

Respondent

) Case Number: FDI-25-801160

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Kalya Flores (Mother) and Respondent Jeffery Bradford Marshall-Nail (Father). They share two minor children: Mireia (DOB: 12/24/20) and Dorothy (DOB: 02/03/22).
- 2) On September 2, 2025, the matter was before this Court on Mother's Request for Order seeking sole legal and sole physical custody of the minor children with no visitation to Father.
- 3) The Court ordered Tier II interviews of:
 - a. San Joaquin County CPS worker Vanessa;
 - b. Father's Psychiatrist, Dr. Malisham, at the Stockton Veterans Administration; and
 - c. Father's Therapist.
- 4) The Court also ordered that Father have supervised visits at Rally Family Services (Rally) for 1 hour per week and set a review hearing for 12/04/25.

- 1 5) On November 26, 2025, Family Court Services (FCS) completed and submitted a Tier II report,
2 which has been read and considered by the Court. The Court is troubled that no response was
3 received from Dr. Viveros and Dr. Malisham (due to his retirement).
- 4 6) On December 4, 2025, the Court appointed Minor's Counsel and continued the matter to March
5 5, 2026 for review of Minor's Counsel's report.
- 6 7) On March 5, 2026, the matter was heard and – after Minor's Counsel's oral update to the Court –
7 the Court found good cause to continue the matter to June 4, 2026 to allow Minor's Counsel time
8 to provide further report of progress.
- 9 8) As of the Court's review on May 31, 2026, the Court had not received update declarations from
10 either party or an update from Minor's Counsel.
- 11 9) On June 4, 2026, the matter was heard, and the Court issued the following orders:
- 12 a. Both parties shall sign up for the "Talking Parents" app within 72 hours.
- 13 b. Father shall have a 1-hour video visit every Tuesday from 8:00 a.m. – 9:00 a.m., and
14 every Friday from 7:00 a.m. – 8:00 a.m., until the next review hearing.
- 15 c. Father shall continue to have a 1-hour weekly in-person Rally supervised visits.
- 16 d. Matter continued to August 11, 2026 at 9:00 a.m., in Department 403 for further review
17 hearing.

18 **B. Findings and Order**

- 19 1) **The parties are ordered to appear.**
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